away. Notably, since filing documents relating to service in mid-February, Mr. Kitterman has filed nothing and failed to respond to inquiries from Court and counsel. He has never served the individual defendant. Given the existing OSC, the Court sua sponte continues this hearing until October 15, 2026, to give Plaintiff or a representative an opportunity to appear or clarify.

9. 9:00 AM CASE NUMBER: C25-03006
CASE NAME: MICHAEL KITTERMAN VS. DR. CHRIS WANG, MD
***HEARING ON MOTION IN RE: STRIKE PORTIONS OF PLTFS COMPLAINT**
FILED BY: JOHN MUIR HEALTH
****TENTATIVE RULING:****

Before the Court is Defendant John Muir Health's Motion to Strike. Kitterman has filed no opposition. Indeed, it does not appear that Kitterman has participated in his case for several months. The Court is moderately concerned that, given the facts underlying this action, Mr. Kitterman may have passed away. Notably, since filing documents relating to service in mid-February, Mr. Kitterman has filed nothing and failed to respond to inquiries from Court and counsel. He has never served the individual defendant. Given the existing OSC, the Court sua sponte continues this hearing until October 15, 2026, to give Plaintiff or a representative an opportunity to appear or clarify.

10. 9:00 AM CASE NUMBER: C25-03832
CASE NAME: JOYCE ESTEY VS. ALBERTO MALDONADO
***MOTION/PETITION TO COMPEL ARBITRATION**
FILED BY: MALDONADO, ALBERTO
****TENTATIVE RULING:****

Off-calendar; motion withdrawn by moving parties on August 25, 2026.

11. 9:00 AM CASE NUMBER: C26-00575
CASE NAME: KEMI RANDOLF-GODDARD VS. SELECT PORTFOLIO SERVICING, INC
HEARING ON DEMURRER TO COMPLAINT
FILED BY: SELECT PORTFOLIO SERVICING, INC
****TENTATIVE RULING:****

Defendant Select Portfolio Servicing, Inc. ("Defendant") brings this demurrer to the complaint ("Complaint") of plaintiff Kemi Rosalia Randolf-Goddard ("Plaintiff"). Defendant challenges the entire Complaint and each of the four individual causes of action.

For the reasons discussed below, the Court **OVERRULES** Defendant's demurrer to the first, second, and fourth causes of action, and **SUSTAINS** the demurrer to the third cause of action. Plaintiff may file and serve an amended complaint within 15 days of notice of entry of this order. (Code Civ. Proc. § 472b; CRC, rule 3.1320(g).)

Meet and Confer

The meet and confer requirement has been satisfied. (Gino D. Palmieri Decl., ¶¶ 3-4; Code Civ. Proc.,

§ 430.41, subd. (a)(3)(A).)

Legal Standard for Demurrer

In ruling on a demurrer, a court must treat as true all properly pleaded material facts contained in the complaint, but not contentions, deductions or conclusions of fact or law. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) "We also accept as true facts which may be inferred from those expressly alleged." (*Cundiff v. GTE Cal., Inc*. (2002) 101 Cal.App.4th 1395, 1405.) A demurrer challenges "the sufficiency of the allegations in a complaint as a matter of law," not the truth of the factual allegations in the pleading or the pleader's ability to prove those allegations. (*Id.,* at pp. 1404-1405.)

Questions of fact cannot be decided on demurrer. (*Berryman v. Merit Prop. Mgmt., Inc*. (2007) 152 Cal.App.4th 1544, 1556.) Because a demurrer tests only the sufficiency of the complaint, a "court will not consider facts which have not been alleged in the complaint unless they may be reasonably inferred from the matters which have been pled or are proper subjects of judicial notice." (*Hall v. Great W. Bank* (1991) 231 Cal.App.3d 713, 718, fn.7.) "[A]t the demurrer stage the complaint must be construed in the light most favorable to the plaintiff." (*Wilson v. Houston Funeral Home* (1996) 42 Cal.App.4th 1124, 1138.)

In ruling upon demurrers, courts treat as being true "not only the complaint's material factual allegations, but also facts that may be implied or inferred from those expressly alleged." (*Poseidon Development, Inc. v. Woodland Lane Estates* (2007) LLC, 152 Cal.App.4th 1106, 1111-1112.) "Liberality in permitting amendment is the rule, if a fair opportunity to correct any defect has not been given." (*Angie M. v. Superior Court* (1995) 37 Cal.App.4th 1217, 1227.) "However, leave to amend should not be granted where, in all probability, amendment would be futile." (*Foroudi v. The Aerospace Corp.* (2020) 57 Cal.App.5th 992, 1000 [citations and internal quotes omitted].)

Background: Facts Alleged in Complaint

Plaintiff filed this action on February 18, 2026. (Complaint, p. 1.) Plaintiff alleges that she is the owner of property located at 4612 Palomino Way, Antioch, California (the "Property"). (*Id*. at ¶¶ 1–2.) Plaintiff asserts that in 2004 she obtained a first position loan for approximately $504,000 and a second position loan for approximately $126,000. (*Id*. at ¶ 13.) The first position loan for $504,000 (the "Loan") is the subject of this lawsuit. (*Ibid*.) Plaintiff made payments on the Loan until 2022, when she was laid off and fell behind on mortgage payments—she was never able to catch up on arrears. (*Id*. at ¶¶ 14, 15.) She thereafter submitted multiple Requests for Mortgage Assistance ("RMAs") between 2023 and 2025. (*Id.* at ¶¶ 16–27.)

Plaintiff further alleges that she was never issued a final decision on any of her applications, that Defendant repeatedly changed her single point of contact ("SPOC"), failed to provide consistent information, did not supply requested loan accountings, issued deficient or contradictory communications regarding RMA eligibility, and improperly proceeded with foreclosure. (Complaint, ¶¶ 17–31.) Plaintiff filed for bankruptcy after May 2025 in an attempt to save her home. (*Id*. at ¶¶ 25.) At some point between May 2025 and July 25, 2025, Plaintiff had a stroke and was in a coma, which caused her to miss a bankruptcy deadline, that resulted in dismissal. (*Id*. at ¶ 25.) On August 26, 2025, she filed for bankruptcy again but the Property was sold on August 27, 2025. (*Id*. at ¶ 30.)

Plaintiff's first cause of action alleges a violation of Civil Code section 2923.7, based on Defendant's failure to provide a knowledgeable single point of contact and failure to offer accurate, timely information regarding Plaintiff's RMAs. (Complaint*,* ¶¶ 32–54.)

Plaintiff's second cause of action alleges a violation of Civil Code section 2923.6, asserting that Defendant did not provide required written denial information, including reasons for denial, appeal instructions, investor-related explanations, or alternative foreclosure-prevention options, and that Defendant foreclosed within the statutory 30-day appeal period. (*Id.* at ¶¶ 55–70.)

Plaintiff's third cause of action alleges a violation of Civil Code section 2923.55, claiming that Defendant recorded a Notice of Default on May 10, 2024, without first contacting Plaintiff in person or by telephone as required. (*Id.* at ¶¶ 71–75.)

Plaintiff's fourth cause of action alleges a violation of Business and Professions Code section 17200 et seq., asserting that Defendant's conduct described above constitutes unlawful, unfair, or fraudulent business practices, resulting in various injuries including loss of the property, lost income, fees, and other damages. (*Id.* at ¶¶ 76–81.)

Plaintiff seeks a jury trial, injunctive relief unwinding the August 27, 2025 sale, reinstatement of title, damages, disgorgement, attorneys' fees, costs, and any further relief the Court deems proper. (*Id.* at pp. 11-12.)

Requests for Judicial Notice

RJN ISO Demurrer

Defendant requests that the Court take judicial notice of a: (1) Deed of Trust recorded August 31, 2004; (2) Assignment of Deed of Trust recorded November 24, 2009; (3) Notice of Default and Election to Sell Under Deed of Trust recorded May 10, 2024; (4) Notice of Trustee's Sale recorded August 14, 2024; (5) Corporate Assignment of Deed of Trust recorded November 5, 2024; (6) Trustee's Deed Upon Sale recorded September 18, 2025; (7) Chapter 7 Bankruptcy Docket and Petition filed on May 27, 2025; (8) Chapter 7 Bankruptcy Docket and Petition filed on August 26, 2025; and (9) Chapter 7 Bankruptcy Docket and Petition filed on October 8, 2025.

RJN ISO Opposition

Plaintiff requests that the Court take judicial notice of an Order and Notice of Dismissal for Failure to Comply, dated October 24, 2025, from the US Bankruptcy Court of Northern California.

RJN Ruling

The Court GRANTS Defendant's requests for judicial notice nos. 1-9 and Plaintiff's request for judicial notice, as to the existence of the documents but not the truth of the matters asserted therein. (Evid. Code, § 452, subds. (c), (d).) "Taking judicial notice of a document is not the same as accepting the truth of its contents or accepting a particular interpretation of its meaning. While courts take judicial notice of public records, they do not take notice of the truth of matters stated therein. When judicial notice is taken of a document, … the truthfulness and proper interpretation of the document are disputable." (*Herrera v. Deutsche Bank Nat'l Trust Co*. (2011) 196 Cal.App.4th 1366, 1375.)

Discussion

Plaintiff's Claims and Their Relation to her Bankruptcy Estate

Defendant argues in the moving papers that Plaintiff's entire Complaint fails to state a claim because Plaintiff did not plead the legal claims giving rise to this suit in her bankruptcy case, and all the claims predated her bankruptcy. Defendant argues that in Chapter 7 Bankruptcy matters, the bankruptcy trustee controls the bankruptcy estate. The trustee is therefore the sole real party in interest with the standing to sue. (Demurrer, p. 7.) Defendant cites *Bostanian v. Liberty Savings Bank, F.S.B.* (1997) 52 Cal.App.4th 1075, 1081, for the proposition that "a Chapter 7 debtor may not prosecute on her own a cause of action belonging to the bankruptcy estate unless the claim has been abandoned by the trustee" (Demurrer, p. 7.) Property of the estate that is not scheduled and not otherwise administered before a case is closed is not abandoned to the debtor at the time of closing, but, rather, remains the property of the estate. (*Id*. at pp. 7-8.) Here, Plaintiff's bankruptcy petitions did not disclose her claims against Defendant on the schedules and the claims arose prior to the bankruptcy petitions being filed. (*Id*. at p. 8.) Here, Because Plaintiff's bankruptcies have been dismissed and there is no showing that the instant claims were abandoned, she has no standing to sue.

Plaintiff argues in the opposition that she does not lack standing because her bankruptcy was dismissed, not administered and closed. (Opposition, p. 7.) She cites *Circle Star Center Associates, L.P. v. Liberate Technologies* (2007) 147 Cal.App.4th 1203, 1204, for the view that a dismissal undoes the bankruptcy and restores property rights to the position in which they were found at the commencement of the case. (Opposition, p. 8.) In the alternative, Plaintiff requests a continuance so that she can reopen the bankruptcy case to properly disclose the claims to the bankruptcy court. (*Id*. at pp. 8-9.)

On reply, Defendant argues that there is no difference to the result whether the bankruptcy is closed or dismissed, as caselaw makes no distinction citing *In re JZ L.L.C*., 371 B.R. 412, 418 (B.A.P. 9th Cir. 2007), for the following statement, "property of the estate that is not scheduled and not otherwise administered before a case is closed is not abandoned to the debtor at the time of closing, but rather remains property of the estate—forever." (Reply, p. 2.) Defendant further argues that the October Bankruptcy was not actually dismissed because the docket of the October bankruptcy shows that the last and final entry on the docket was "Bankruptcy Case Closed." (*Id*. at p. 3.)

Here, the Court finds that Plaintiff has standing to currently pursue her claims because the October 2025 bankruptcy was dismissed.

> A dismissal, unless otherwise ordered, "revests the property of the estate in the entity in which such property was vested immediately before the commencement of the case under this title." (11 U.S.C. § 349(b)(3).) This provision "obviously contemplates that on dismissal a bankrupt is reinvested with the estate, subject to all encumbrances which existed prior to the bankruptcy. After an order of dismissal, the debtor's debts and property are subject to the general laws, unaffected

> by bankruptcy concepts." (*In re Income Property Builders, Inc*. (9th Cir. 1982) 699 F.2d 963, 965, fn. omitted, italics added.) " 'The basic purpose of the subsection is to undo the bankruptcy case, as far as practicable, and to restore all property rights to the position in which they were found at the commencement of the case.' "

(*Circle Star Center Associates, L.P. v. Liberate Technologies* (2007) 147 Cal.App.4th 1203, 1209.)

Defendant's argument on reply does not provide any authority to show that the dismissal does not revert the property back to Plaintiff, and only cites *In re JZ L.L.C*. (B.A.P. 9th Cir. 2007) 371 B.R. 412, 418, for the statement that "property of the estate that is not scheduled and not otherwise administered ***before a case is closed*** is not abandoned to the debtor at the time of closing, but rather remains property of the estate—forever." (Reply, p. 2, emphasis added.) That deals with cases which are closed and does not line up with Plaintiff's argument in opposition. Defendant's other argument, that Plaintiff's October 2025 bankruptcy proceeded and was eventually closed on December 2, 2025 (Reply, p. 3), is not supported by their exhibits. Defendant cites to Exhibit 9 of its RJN, for this assertion, yet Exhibit 9 of Defendant's RJN does not appear to assert what Plaintiff claims, as it appears to this Court that rather than stating the case was closed on December 2, 2025, it shows that the October 2025 bankruptcy case was dismissed on October 24, 2025, which is in line with the request for judicial notice made by Plaintiff in support of the opposition.

Defendant's demurrer to the entire complaint based on lack of standing due to bankruptcy is overruled.

<u>Civil Code Section 2923.7 Claim</u>

Defendant argues that this claim fails because Plaintiff has admitted being assigned a single point of contact. (Demurrer, pp. 9-10.) Defendant contends that the multiple single points of contact occurred because she filed multiple RMAs. (*Id*. at p. 10.)

Plaintiff argues in opposition that Civil Code § 2923.7(b)(2) requires not just the appointment of a SPOC but additionally requires the SPOC to have access to current information and personnel to timely, accurately, and adequately inform the borrower of the current status of the foreclosure prevention alternative, which was not done here. (Opposition, pp. 10-11; Complaint, ¶¶ 18-20, 36-40.)

Defendant argues on reply that "The Opposition claims that Defendant did not have access to current information regarding the status of the foreclosure prevention alternative. [Citation.]. However, Plaintiff's allegations are conclusory and uncertain. It is unclear which SPOC for which RMA Plaintiff is unsatisfied with in her Complaint as she fails to describe each alleged RMA (i.e., date it was submitted, affirmation that it was complete, form in which it was submitted) or the name of an assigned SPOC with any sufficient particularity." (Reply, p. 3.) Defendant contends that the multiple SPOCs were because she submitted multiple RMAs. (*Id*. at p. 4.)

The Court finds that Plaintiff has stated a claim for violation of Civil Code section 2923.7. Plaintiff alleges that "When Plaintiff would call SPS, SPS would direct her to speak to her single point of contact, but her single point of contact changed so frequently that she was unable to get consistent information regarding the Loan Modification Applications she submitted. Furthermore, Plaintiff submitted numerous requests for an accounting of the Loan so that she could verify the Loan's balance and arrears. None were ever provided." (Complaint, ¶¶ 18-19.) "[A]t the demurrer stage the complaint must be construed in the light most favorable to the plaintiff." (*Wilson v. Houston Funeral Home* (1996) 42 Cal.App.4th 1124, 1138.) Here, the Court finds Plaintiff's allegations sufficient for the pleading stage and overrules Defendant's demurrer to Plaintiff's first cause of action for violation of Civil Code section 2923.7.

<u>Civil Code Section 2923.6 Claim</u>

Defendant argues in the moving papers that Plaintiff did not state a claim under Civil Code section 2923.6 because she submitted multiple RMAs, which subsection (g) addresses, and provides that to combat borrowers who submit multiple RMAs to delay the foreclosure process the servicer is not required to evaluate applications from borrowers who have already been fairly evaluated absent a material change in the borrower's financial circumstances. (Demurrer, p. 10.) Defendant asserts Plaintiff's allegations regarding a violation of subsection (f), which requires certain information to be provided following the denial of a first lien loan modification, are conclusory and rather than attach the full denial letter, she only quotes an excerpt. (*Id*. at pp. 10-11.) Defendant further argues that it was not required to wait 30 days prior to foreclosing because "Plaintiff's admitted delay tactics waive any obligation by Defendant to wait 30 days after the July RMA" and Plaintiff does not state she submitted an appeal or that the RMA denials were in error.

Plaintiff argues in the opposition that it is irrelevant that she submitted multiple RMAs, and that she does not deny that, but that she received no response to any of them prior to May 2025 and was eventually told that they did not have a record of those applications. (Opposition, p. 13.) She further argues that she submitted an RMA on or around July 25, 2025, and that for Defendant to proceed with the foreclosure on August 27, 2025, is a clear and evident violation of Civil Code § 2923.6, subdivision (d).

On reply, Defendant argues that Plaintiff received a denial letter that was sufficient because the only information required to be in a denial letters is the amount of time a borrower has to appeal the denial. (Reply, p. 4.) Further, Defendant argues they did not need to wait to foreclose until 30 days from the denial of the July 25, 2025 RMA, because they had already reviewed and denied Plaintiff's April 30, 2025 RMA on May 7, 2025, and the Complaint is devoid of any allegations of a change in circumstance. (*Id*. at pp. 4-5.)

Here, the Court finds that Plaintiff has stated a claim under Civil Code section 2923.6, because the May 6, 2025 denial is alleged to have not identified the reason for the denial, in violation of this section. (Complaint, ¶¶ 60-61.) Defendant argues that the denial only needs to identify the appeal time, but it also at the very least must identify "the reasons for denial" in addition to the amount of time to appeal. (Civ. Code, § 2923.6, subd. (f).) Further, while subdivision (g) provides that a mortgage servicer is not obligated to evaluate applications from borrowers who were already afforded a fair opportunity, this does not mean that if they ignore the law and evaluate an application anyways, that they can then foreclose within 30 days of a denial. Because Plaintiff alleges Defendant sent her a letter after her July 25, 2025 RMA stating she would receive a final decision "indicating whether she was approved for mortgage assistance or, if she was ineligible, the reason for her ineligibility" (Complaint, ¶¶ 63-64), Defendant waived its option to not evaluate the July 25, 2025

RMA, and was still required to wait 30 days after the denial that came in on July 29, 2025, which it did not because it sold the Property on August 26, 2025. (Complaint, ¶ 65.)

The Court overrules Defendant's demurrer to Plaintiff's second cause of action for violation of Civil Code section 2923.6.

Civil Code Section 2923.55 Claim

Defendant argues in the moving papers that Plaintiff has not pled a claim under Civil Code section 2923.55, which requires a mortgage servicer to contact the borrower in person or by telephone in order to assess the borrower's financial situation, and submit a declaration with the recorded notice of default attesting to the meeting or due diligence. (Demurrer, pp. 11-12; Civil Code, § 2923.55, subd. (b)(2)(A).) Defendant argues that all that is required is the declaration to be included with the recorded notice of default, which was done. (Demurrer, pp. 11-12; Complaint, ¶ 73; RJN ISO Demurrer, Exh. 3.) Defendant further argues that even if the call did not occur on that date, Plaintiff alleges multiple phone calls with Defendant's representatives in 2023, and the Notice of Default was recorded on May 10, 2024, which was more than the required 30 days after any of those phone calls.

Plaintiff argues in the opposition that even though Plaintiff spoke to the Defendant about her financial circumstances prior to the Notice of Default being recorded, the Notice of Default has an inaccurate date because Plaintiff did not speak to Defendant on that date. (Opposition, p. 14.) Plaintiff argues that had Defendant complied with this code section that "Plaintiff might have been able to obtain answers regarding the status of her loss mitigation applications." (*Ibid*.)

On reply, defendant argues that asserting that a declaration under this section contained an inaccuracy does not state a claim under this section for failing to contact the borrower to assess the borrower's financial situation and explore options for the borrower to avoid foreclosure." (Reply, p. 5.)

The Court agrees with Defendant that an inaccurate date identified on the declaration attached to the recorded notice of default, when combined with allegations that Plaintiff and Defendant had been in contact and Plaintiff even filed at least one RMA in 2023, months prior to the May 10, 2024 notice of default being recorded, does not state a claim under this section. (Complaint, ¶¶ 17-18 [alleging at least one loan medication application being submitted in 2023, and contacts with Defendant].)

The Court sustains Defendant's demurrer to Plaintiff's third cause of action for violation of Civil Code section 2923.55.

Business & Professions Code Section 17200 et seq.

Defendant argues that "Under its unlawful prong, the unfair competition law ("UCL") (Bus. & Prof. Code, § 17200 et seq.) borrows violations of other laws and makes those unlawful practices actionable under the UCL." (Demurrer, p. 12.) "Plaintiff has failed to sufficiently plead any violations of other laws which this cause of action can be based off. For this reason, Plaintiff's Fourth Cause of Action rises and falls with the other Causes of Action." (*Ibid*.)

Plaintiff argues in the opposition that because her other claims are valid, so is her Section 17200 claim. (Opposition, pp. 14-15.) On reply, Defendant argues that "Plaintiff's Fourth Cause of Action rises and falls with the other Causes of Action." (Reply, p. 5.)

Because the Court has overruled the demurrer to the first and second causes of action, this UCL claim is sufficiently pled.

Ruling

Based on the analysis above, the Court **OVERRULES** Defendant's demurrer to the first, second and fourth causes of action and **SUSTAINS** the demurrer to the third cause of action. Plaintiff may file and serve an amended complaint within 15 days of notice of entry of this order. (Code Civ. Proc. § 472b; CRC, rule 3.1320(g).)

12. 9:00 AM CASE NUMBER: C26-02214
CASE NAME: BOBBY JOHN VS. ANAND MUNI
MOTION TO BE RELIEVED AS COUNSEL RE: MEGAN T. BURNS
FILED BY: JOHN, MARIA
TENTATIVE RULING:

The Court requires supplemental information filed under seal to be reviewed in camera.

13. 9:00 AM CASE NUMBER: C26-02214
CASE NAME: BOBBY JOHN VS. ANAND MUNI
MOTION TO BE RELIEVED AS COUNSEL RE: MEGAN T. BURNS
FILED BY: JOHN, TONY
TENTATIVE RULING:

The Court requires supplemental information filed under seal to be reviewed in camera.

14. 9:00 AM CASE NUMBER: C26-02214
CASE NAME: BOBBY JOHN VS. ANAND MUNI
***HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL**
FILED BY: JOHN, BOBBY
TENTATIVE RULING:

The Court requires supplemental information filed under seal to be reviewed in camera.

15. 9:00 AM CASE NUMBER: MSC21-02258
CASE NAME: THOMAS VS. ECKERT
***HEARING ON MOTION IN RE: BIFURCATE TRIAL**
FILED BY: ECKERT, DAVID
TENTATIVE RULING: